

Amitabh Singh vs Sheena Singh on 1 December, 2020

Author: Hima Kohli

Bench: Hima Kohli, Subramonium Prasad

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ MAT.APP.(F.C.) 147/2020, CM APPL. 30762/2020 (ex parte ad interim directions), CM APPL. 30763/2020 (exemption) & CM APPL. 30764/2020 (delay of 12 days in refiling appeal)
AMITABH SINGH

.....Appellant

Through: Mr. Danish, Advocate.

versus

SHEENA SINGH

....Respondent

Through: Ms. Perna Mehta, Advocate.

CORAM:

HON'BLE MS. JUSTICE HIMA KOHLI

HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD

ORDER

% 01.12.2020 HEARD THROUGH VIDEO CONFERENCING.

CM APPL. 30763/2020 (exemption) Allowed, subject to all just exceptions.

MAT.APP.(F.C.) 147/2020, CM APPL. 30762/2020 (ex parte ad interim directions), & CM APPL. 30764/2020 (delay of 12 days in refiling appeal)

1. The appellant/husband is aggrieved by an order dated 15.09.2020, passed by the learned Principal Judge, Family Court, Patiala House, disposing of an application moved by the respondent/wife under Section 24 of the Hindu Marriage Act, praying inter alia for grant of maintenance. Though the respondent/wife had initially asked for maintenance for herself and her son, later on, the application was confined to the respondent/wife herself.

2. The learned Family Court has ordered the appellant/husband to pay a sum of Rs. 75,000/- per month to the respondent/wife as maintenance from the date of filing of the application till the disposal of the divorce petition pending between the parties alongwith a sum of Rs.1,10,000/- towards litigation expenses.

3. After addressing arguments for some time, learned counsel for the appellant/husband states he may be permitted to withdraw the present appeal, while reserving the right of the appellant to approach the learned Family Court by moving an application pointing out the changed

circumstances in the light of the fact that the appellant/husband has retired from his earlier service with Air India in the end February 2020 and has been re-employed with another Airline where his monthly remuneration has gone down.

4. In view of the submissions made hereinabove, the present appeal is disposed of as not pressed with liberty granted to the appellant/husband, as recorded hereinabove.

HIMA KOHLI, J.

SUBRAMONIUM PRASAD, J.

DECEMBER 01, 2020 kk/rkb